at issue before the court. (See *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476.)

Cross-Defendant's application for distribution of interplead funds does not remedy the above deficiencies as it is equally deficient as to factual support.

25CV-02170 City of Fresno Employees Retirement System, et al. vs City of Fresno

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is DENIED as to the second cause of action, and GRANTED WITH LEAVE TO AMEND as to the third cause of action.

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex rel. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.)

Cross-Complainant's second cause of action adequately pleads a breach of fiduciary duty. Although a breach of fiduciary duty may be a legal claim, it may also be equitable in nature. Breach of fiduciary duty claims in California carry a particularly robust set of available equitable remedies, including injunctive relief. In this instance, when the cross-complaint is read as a whole, the breach of fiduciary duty cause of action sounds in equity and is sufficient at the pleading stage.

As to the third cause of action for negligence, equitable relief is generally available only if legal remedies such as monetary compensation are inadequate. Here, the cross-complaint alleges Cross-Complainant was monetarily harmed as a result of Cross-Defendant's alleged actions. (FACC, ¶¶ 104-106, 14:18-25.) In this context, Cross-Complainant's third cause of action appears to seek monetary damages and does not adequately plead equitable relief so as to preclude the Government Claims Act and the immunities thereto from applying. Cross-Complainant has requested leave to amend, which is granted.

Any amended cross-complaint is to be filed within ten (10) days of this court's order.

Case Management Conference

CONTINUED ON THE COURT'S OWN MOTION to August 14, 2026, at 8:15 a.m. in Courtroom 8 in light of the above ruling.

25CV-03448 Emily Welch, et al. vs Go Go Bake Corporation, et al.

Motion to Compel Further Responses to Requests for Production of Documents, Set One, Number 8, to Defendant Go Go Bake Corporation and Request for Monetary Sanctions Against Go Go Bake Corporation and Felipe Jeronimo Matias

Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, Number 8 is GRANTED. Defendant is to provide a further code-compliant verified response to Requests for Production of Documents, Set One, Number 8 within ten (10) days of this court's order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of $1,000 are to be paid to Plaintiff within fifteen (15) days of this court's order.

In addition, Defendant is ordered to pay Plaintiff $2,544 for court reporter and videographer fees incurred as a result of Defendant Matias' failure to appear at his duly noticed deposition on April 8, 2026. These costs are to be paid to Plaintiff within fifteen (15) days of this court's order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

26CV-00334 Raymond Lamerson vs Meyer Pink Law, et al.

Motion for Attorney's Fees and Costs Pursuant to CCP 425.16 (Anti- SLAPP)

Defendant's motion for attorney's fees and costs is GRANTED.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) "The amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar 'lodestar' method." (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135-1136.) "Under that method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expensed by the reasonable hours rate prevailing in the community of similar work." (*Ibid.*)

Counsel for Defendant seeks to set the lodestar at $6,336 and requests an additional $112.59 for costs. A trial court may not rubberstamp a request for attorney's fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) Here, the total of 12.8 hours billed for the motion are reasonable.

The court must then look at the hourly rate. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Accordingly, following a careful review of the work required the court finds it reasonable to reduce the hourly rate from $495 to $350.